



POLICE DEPARTMENT

April 14, 2011

MEMORANDUM FOR: Police Commissioner

Re: Sergeant George Morales
Tax Registry No. 918029
45 Precinct
Disciplinary Case No. 85737/09

The above-named member of the Department appeared before me on November 18, 2010, and January 10, 2011, charged with the following:

1. Sergeant George Morales, while assigned to the 45th Precinct, while on duty on April 19, 2008, at approximately 1852 hours, while in the vicinity of [REDACTED], used physical force against Mr. Aneudy Gomez, in that Sergeant Morales, without police necessity, forcibly removed Mr. Gomez¹ from a vehicle, and threw him onto the ground, causing Mr. Gomez's head to make contact with the ground. (*As amended*)

P.G. 203-11, Page 1 – USE OF FORCE

2. Said Sergeant George Morales, assigned as aforesaid, at time, date and location set forth in Specification One, used physical force against Mr. Aneudy Gomez, in that Sergeant Morales used his fist to punch Mr. Gomez's head, without police necessity. (*As amended*)

P.G. 203-11, Page 1 – USE OF FORCE

3. Said Sergeant George Morales, assigned as aforesaid, at time, date and location set forth in Specification One, having been involved in a police incident, did thereafter fail and neglect to make entries regarding the incident in his Activity Log (PD 112-145). (*As amended*)

P.G. 212-08, Page 1 – ACTIVITY LOGS

4. Said Sergeant George Morales, assigned as aforesaid, on December 22, 2008, while being interviewed as a subject at the Civilian Complaint Review Board, 40 Rector

¹ The amended specification mistakenly states "Mr. Morales."

Street, New York County, regarding the police incident set forth in Specifications One and Two, could not cooperate with the Civilian Complaint Review Board's investigation in that during said interview Sergeant Morales was unable to report any pertinent information, facts and observations regarding the incident (*As amended*)

P G 211-14, Page 1 – INVESTIGATIONS BY CIVILIAN COMPLAINT
REVIEW BOARD

The Department was represented by David Bernstein, Esq and Adam Sheldon, Esq , Department Advocate's Office The Respondent was represented by John D'Alessandro, Esq

The Respondent, through his counsel, entered a plea of Not Guilty to Specification Nos 1, 2, and 4 and a plea of Guilty to Specification No 3 A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review

DECISION

The Respondent is found Not Guilty of Specification Nos 1 and 2 He is found Guilty of Specification 4 Having pled guilty to Specification No 3, he is found guilty of that Specification

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Aneudy Gomez, Denis McCormick, and Detective James Connolly as witnesses The Department also offered the out-of-court statements of David Concepcion and the Respondent

Aneudy Gomez

Gomez currently lives in [REDACTED] and has been living there for approximately 21 years. He has been employed at a midtown hotel as a bellhop for the last two years. Gomez has an Associate Degree in Electronics and Computer Technology from DeVry Institute of Technology.

On April 19, 2008, at about 6:52 p.m., Gomez was going to [REDACTED] [REDACTED] house and was looking for a space to park his car. He did not find a spot after searching for a few minutes, but did hear sirens from behind him. When he saw an unmarked police car, he pulled over slightly to the right so the police car could pass him. However, the car stopped right behind him at the corner of [REDACTED]. [REDACTED] Two plainclothes officers emerged from the unmarked car with guns drawn. They approached Gomez's car and he immediately began lowering his windows and unlocking his car doors. He placed the car into park. He had lowered the rear windows and the front passenger window, but he was unable to lower the driver side window because of damage to his vehicle caused by a prior motor vehicle accident. He also had difficulty opening the driver side front door without forcing it open or "unjamming" it. He stated that the unjamming process consists of first opening the driver side rear door, and then opening the driver side front door. The officers approached the car from both sides.

Subsequently, Gomez began informing the Respondent's partner, then-Police Officer James Connolly, who was on the passenger side of the car. The Respondent, who was on the driver side of the car, was trying to force it open while banging the window with his gun. Gomez explained to Connolly that he could not lower the window or open the door unless he unjammed it from the back. With his hands on the dashboard, Gomez

further explained that he was not trying to do anything suspicious by reaching into the back, but merely needed to open the back door before opening his door. By this point, Connolly already had the front passenger door open. Gomez said he was going to reach into the back to open the door, and then did so. Gomez demonstrated how he turned around to his left, extended his left arm and opened the back door of the vehicle from the driver's side. Immediately thereafter, the front door audibly unjammed itself and Gomez opened it slightly.

Next, Gomez announced, "I'm getting out of the car, with my hands up." He carefully stepped one foot out of the car at normal speed, then was grabbed and thrown to the ground by the Respondent. Gomez testified that the Respondent grabbed him quickly by his right side by his neck and threw him onto the ground, face first. After Gomez's forehead hit the ground, he received repeated punches in the back and side of his head. He took no action while on the ground, as his hands remained behind his back the entire time. Neither was he resisting arrest in any way or making any movements with his hands or legs while being punched. Shortly following this incident, Gomez said he was handcuffed and picked up from the ground by the Respondent. He was taken to the precinct where he was booked and processed.

At first, Gomez refused medical help while at the station house. Then, he requested to go to the hospital because his forehead was bleeding. He said he initially refused treatment because he was upset at the time. Gomez was brought to [REDACTED] Hospital for treatment [Department Exhibit (DX) 2, 16-page document containing Gomez's medical records].

While in police custody, Gomez mentioned to an officer in a white shirt that he was pulled over and punched. The officer merely heard him out. Gomez did ultimately file a lawsuit regarding the incident because he thought what happened to him was wrong. The lawsuit is still pending. The criminal charges brought against Gomez, reckless endangerment, resisting arrest and one other, were adjudicated with an Adjournment in Contemplation of Dismissal (ACD).³

Gomez was shown two NYPD Mugshot Pedigree photographs taken when he was booked and processed at the station house (DX 3). He said they were fair and accurate representations of the way he appeared that day. By looking at the photograph he noticed a few bleeding holes in his forehead, and said the upper portion of his forehead was swollen. He testified that he sustained these injuries from the Respondent throwing him onto the ground and punching him. Gomez said he did not have those injuries prior to the time he interacted with the officers. Pursuant to the criminal charges against Gomez, he appeared in court from 2008 until a few months before this trial.

A few days following his arrest, Gomez said he took a photograph of his [REDACTED] [REDACTED] to show the condition of his vehicle (DX 4). Gomez stated that there was an accident report associated with the accident that caused damage to his car. He did not provide the report to anyone at the Civilian Complaint Review Board (CCRB). Gomez recounted that he asked the lieutenant at the precinct and Connolly to inspect the car. Once they did so, they concluded that the door did not open. Gomez testified that the damage in the picture accurately reflected the damage to the car on the date and time of the incident. Gomez indicated the Respondent as the officer who punched him on that

³ An ACD is essentially a form of dismissal of the charges conditioned on the defendant not getting in trouble for a period of six months.

date He also stated that the Respondent's partner, Connolly, did not hit or do anything bad to him while at the scene

On cross-examination, Gomez acknowledged that he received his ACD in March of 2010, and the incident happened in April of 2008 He did not know why it took so long Gomez said he was hospitalized at sometime during the two-year period from April 19, 2008, and March of 2010 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Gomez recalled being in the hospital This hospital stay occurred after his car accident and one week prior to the incident with the Respondent It was that accident which caused the damage to his vehicle He also remembered his girlfriend being at the scene of the April 19, 2008, incident She had gotten to the scene by foot because she lived two houses away Gomez stated that he was not taking any "crazy ill medications" but was prescribed merely Advil PMs, or something a bit stronger During the entire 20-day stay, he said he just slept and watched television at [REDACTED] Hospital [REDACTED]

Gomez reiterated that his first instinct was to put his hands behind his back and he had his hands as such when he hit the ground As his hands stayed behind his back, he dropped like dead weight and his face hit the floor His hands were not restrained in any

way The reason Gomez gave for not breaking the fall with his hands was that it all happened too fast

Gomez did not give CCRB the picture he took of his car's damage, he just wanted to file a complaint and did not think they would have any use for it. After the initial visit, Gomez was contacted by CCRB by telephone. He was never asked for the picture he had taken of the car, nor the accident report associated with the damage to the car. Gomez said the accident report number should be on file with the precinct in which the accident occurred. He was hospitalized after the accident in [REDACTED]. No one at the hospital asked for the accident report.

Gomez only took two pictures of his [REDACTED]. He could tell the make and model from the pictures because he owned it. The car was sold, but he has other pictures of the car from before it was involved in the accident. Gomez then reiterated that he initially refused medical attention because he was upset and skeptical that anyone would actually help him. Eventually, he called for help once he calmed down because he was in such pain. Before that, he was cooperating but just did not want to go to the hospital because he wanted the injuries to show. The mugshot photographs, he explained, were taken after he was cleaned up.

Gomez testified that he did not remember driving fast and almost hitting two pedestrians, nor the officers just before being stopped in April of 2008. He claimed he was not driving recklessly. He said he was driving on [REDACTED], and under the [elevated] train path there are two lanes with big dividers on the right and left. Gomez stated, "Anybody who dares to drive recklessly is looking to die. You hit one of those poles you're dying." He said people are hardly ever outside in that neighborhood,

and no one was there that day. Gomez stated that no one was in front of him, behind him, or present when he made a turn. He also said no one came forward saying that he almost killed them. He clarified that his testimony is that two officers came up behind him, with lights and sirens, got out of their car with guns drawn, dragged him out of his parked car and beat him up for no reason whatsoever. Other officers in the same precinct were very attentive to Gomez's situation and he was cooperating with them. He denied yelling at them and being uncooperative.

Denis McCormick

McCormick has been with CCRB for 14 years and is the manager for CCRB in Staten Island. McCormick explained that, when his department receives complaints, cases are assigned to an investigator. Regarding the investigator who interviewed the Respondent, McCormick was his supervisor and would interact with him every day. Their desks were near each other's. McCormick did not recall how much they spoke about the Respondent, but said there must have been a few occasions because he read the closing report. He could not say how many times he spoke to the investigator about the interview.

McCormick was familiar with the case involving the Respondent, as he was the supervisor of the case from start to finish. He reviewed it periodically at CCRB and had authority over the closing report and its approval. McCormick had a chance to review the case file one week before trial. He reread the case file and listened to the audio tape of the Respondent and Connolly. He explained that Gomez reported his own incident as a

walk-in At that point, CCRB was not aware he had filed his complaint by any other means

McCormick described the course of his investigation, saying that medical documents, police documents, and radio communications were requested and received They interviewed the Respondent but were unable to contact Connolly because their computer showed that he was no longer a member of service at the time of their investigation They subsequently closed the case Initially, McCormick testified, the allegations against the Respondent of “guns pointed, physical force and threat of arrest,” was deemed unsubstantiated because they had no police version of the incident, and they could not determine whether the officers were justified in their actions CCRB had no ability to determine whether the officers’ alleged actions fell into one of the affirmative findings of exonerated, unfounded or substantiated They had no police version at the time because the Respondent told them he had no recollection of the incident

In late July of 2009, CCRB received word from the Department that Connolly was, in fact, still a member of service, and he was interviewed. Thereafter, the allegations of force and threat of arrest against the Respondent were substantiated CCRB exonerated the gun-pointing allegation against both officers, but noted the misconduct of “no memo book⁴” on the part of the Respondent McCormick testified that he decided to change the recommended disposition the second time because Connolly was able to provide a police version of why some of the actions took place Based on his statement and those statements already collected from the civilians, CCRB believed the Respondent committed the substantiated allegations

⁴ Formally referred to as Activity Log

McCormick said his interview with the Respondent was in late December of 2009⁵, but does not remember the exact date. Generally, McCormick explained, an officer who comes in is handed an allegation sheet, which contains the date, time, location, allegations, names of complainants, victims, and allegations as pled by particular officers. Here, the Respondent was given the opportunity to speak with his counsel before beginning the interview with an investigator.

After the investigator started the official interview, McCormick listened to a tape of the interview. As McCormick described, it began with a standard script, which is a list of the date, time, location and all members present. Then, the officer was asked to look at his memo book and provide any entries therein. Finally, the officer was given a chance to provide a narrative. When the Respondent was asked if he could relay any information about the incident, he had no recollection of it occurring. At that point, he was shown Gomez's mugshot and asked if he made any arrest at the location of the incident. McCormick testified that the Respondent replied in the negative to both questions and said he did not recall Gomez. The Respondent was told Gomez was given charges of reckless endangerment or reckless driving to jog his memory, he also reviewed the arrest paperwork, where he was given the time, place and date of occurrence and location, but the Respondent still said that he did not remember the case. He also did not volunteer any information to the investigator with regard to contact information regarding his partner at that time. In essence, he did not give any information of any investigatory value regarding this case.

McCormack stated that the impact the Respondent's not remembering had on the case was that they did not know Connolly was still a member of the service and CCRB

⁵ According to the interview recording and transcript (DX 6 and 6A), the date is December 22, 2008

did not have the officers' version of what occurred. He stated that, based on the lack of information from the officers, CCRB unsubstantiated the allegations against the Respondent.

On cross-examination, McCormack testified that he ultimately learned that Connolly was an undercover police officer and his undercover status made it more difficult to locate him. He admitted that at no time during the Respondent's interview was he asked if he knew how to get in touch with Connolly and he also acknowledged that he was not aware if the Respondent knew that they could not locate Connolly. After Connolly was interviewed, the allegations against the Respondent were substantiated even though Connolly told them that Gomez was driving erratically and recklessly and that when Gomez was stopped, he was acting irrationally and lunged out of the car at the Respondent. McCormack stated that Connolly also told him that when Gomez lunged at the Respondent, they went to the ground and Connolly had to come around the car to assist the Respondent.

When McCormack was asked what was it about Connolly's interview that caused him to substantiate the charges against the Respondent, he explained that Connolly also "stated that he missed some of the crucial points of where the alleged force was made or the allegations made against [the Respondent] and we at that point I think just determined that the allegation of the individuals that we interviewed on the complainant side was much stronger and more in line and we determined that that's what occurred." McCormack was referring to the "slight period of time" that it took Connolly to run around the car where he could not see if the Respondent had punched Gomez. McCormack admitted that the entire sum and substance of Connolly's statements directly

contradicted what Gomez told them. But he had "numerous civilians" alleging that the Respondent was the aggressor, namely three people who corroborated the physical force but never made any mention of a lunge or any action by Gomez. The impression was that CCRB thought it was unlikely that Gomez could lunge with both hands and at the same time and "be putting his hands in front of him to reach for the sergeant it seemed very difficult to do."

McCormack acknowledged that it is not uncommon for police officers to be called to CCRB several months after an incident has occurred and not remember incidents. A trained investigator will use various ways to refresh the officer's memory, including the use of arrest paperwork. McCormack was not certain whether the Respondent was shown or asked to look at arrest paperwork for this case to refresh his memory. The investigator did ask him to look at his memo book and asked him if he had made an arrest at the location, he asked him if he recognized the arrest photograph and if he remembered what Gomez was charged with. McCormack stated that the investigator could have shown the Respondent the On Line Booking Sheet (OLBS).⁶

McCormack further testified that when one of the witnesses in this case, David Concepcion, was interviewed by telephone (DX 1) no one from CCRB ever interviewed him in person to take a "formal statement" or took any steps to confirm he was who he said he was. McCormack admitted that he had no way of knowing "with certainty" that it was, in fact, Concepcion on the other end of the phone.

⁶ The On Line Booking Sheet contains arrest information including the defendant's name, the location, the charges and other information pertaining to a particular arrest.

Detective James Connolly

Connolly was appointed to the New York Police Department in July of 2006. Since then, he worked on patrol in the 45 Precinct in the Bronx and in the Manhattan North Narcotics Division as an undercover and investigator. He was promoted to detective in January of 2010.

Connolly remembered the incident regarding Gomez. He said that he and his partner, the Respondent, pulled Gomez over for driving erratically in the vicinity of [REDACTED]. After they observed him driving in this manner, they made a U-turn to pull him over. They caught up to him on [REDACTED], where they put on their emergency lights in preparation to stop him. Connolly explained that the car stopped in its lane. The team waited a few seconds to see what was happening, and the car did not pull to the side. Connolly was concerned that the driver might run because normally drivers pull over to the side of the road.

Connolly and the Respondent then exited their car and approached Gomez's vehicle. Connolly was on the passenger side while the Respondent was on the driver side. At this time, both of them were instructing Gomez to turn off the car and to roll down his windows. Connolly said Gomez was saying something, but he could not remember the content. He did remember that Gomez was not cooperating with the orders given to him. Connolly stated that he did not recall any conversation between himself and Gomez to the effect that damage to the car prevented his attempts to open the driver side door to exit the vehicle or roll down its window. What Connolly did remember, however, was Gomez quickly opening the door and "lunging out of it towards [the Respondent]." All the while, Connolly was on the passenger side of the vehicle. After

he saw Gomez lunge, Connolly ran around the back of the car to help the Respondent, only to see Gomez flailing around on the ground so as to avoid being handcuffed. The Respondent was "trying to control his arms." Connolly then assisted in the handcuffing, which took "quite a few seconds."

Connolly did not see the Respondent "repeatedly punching" Gomez in the back of the head. Connolly noted that if he was hitting Gomez, he would have been able to see it because it took "just seconds" for him to get from the passenger side to the driver side of the vehicle. As he came around the car, he was calling for assistance on his police radio. He said he called for back up because "this guy was attacking the sergeant." Connolly's attention was focused on Gomez during the entire incident because he considered him a threat to the Respondent. This focus included him "looking across the car" as he was going around the car. Once he got around to the other side of the car "we got him handcuffed" and police backup arrived.

When asked by the Court as to what made him have concern for the Respondent, Connolly stated that he did not remember asking Gomez anything about his car. He just remembered seeing the driver side door fly open and Gomez "lunging out towards" the Respondent "almost like a tackle." Once Connolly got around the car, he saw Gomez "jerking around left and right" to prevent being handcuffed. By the time he got around, the Respondent and Gomez were already in contact with one another low to the ground (not standing upright). He further explained that "they were already in contact with each other and Mr. Gomez is basically flailing around at this point, ripping his arms back and forth. I think [the Respondent] is trying to handcuff him, he got his hands at that point I

guess he needed a second hand when I got over there we had to get his arms and use a lot of strength to push them together to actually handcuff him ”

While still at the scene, Connolly was approached by Gomez's [girlfriend], Elaine Rivera Connolly asked Rivera why Gomez may have been driving recklessly and why he would not cooperate Rivera told him, “I don't know why he acts like that you know, he is on medications, he was just released from a hospital, [REDACTED]” In his memo book entries (Respondent's Exhibit A), Connolly wrote

1850 [hours] Pickup of reckless driver [Gomez]

1852 [hours] 1 Under [arrest] [front of] [REDACTED]
[REDACTED] Elaine Rivera states that [REDACTED] (pcrp)
has [REDACTED] and was just
released from [REDACTED]

Rivera signed her name under his entries Connolly said he had her do this because he wanted to document why Gomez “would act so erratic ”

After they left the scene, Gomez was brought to the 45 Precinct station house for processing An ambulance was summoned, but Gomez refused medical attention He was initially erratic, but eventually calmed down

On cross-examination, Connolly agreed that he was informed of the time, place and location of the events when he went for his CCRB interview on August 19, 2009 He also had an opportunity during that interview to consult his Activity Log He said he was able to give a fairly detailed account of what happened Connolly remembered why he stopped Gomez based on that information He remembered telling CCRB that his gun was drawn, that force was used in the handcuffing, that he discussed the incident with

Rivera, and that there were injuries to Gomez's face. He said he could remember the incident.

Connolly acknowledged that, during his prior testimony, he stated that he could not hear exactly what Gomez was saying, but could tell he was trying to say something. He agreed that he saw the driver side door open, but could not see who opened it. Connolly reiterated that he ran around the car when he saw Gomez "actually lunged out of the car" at his partner, "it wasn't a gentle get out." He agreed that his eyes were focused on the struggle while he ran around the car.

When Connolly did not recall whether he told CCRB that he was not watching the struggle when he ran around the car, the following excerpt of his CCRB interview was read to him where he was asked the following questions and gave the following answers:

Question: Okay, and can you describe exactly how he lunged at [the Respondent]?

Answer: Well, he kind of -- I just saw like a hand on the steering wheel and the hand on the post and then jumps straight out with hands out and that's when I already trying to move around you know, to that side of the vehicle.

Question: Okay, and were you watching him as you ran around?

Answer: No I was putting -- I wanted to put over the air, over the radio and 85. I just remember grabbing my radio and putting it over as I am running around the back side of the car.

Connolly then recalled that exchange and giving those responses. He added that when he made it to the driver side, he saw the Respondent bear hug Gomez on the ground. He did not recall at what point he noticed Gomez's facial injury. He stated that the injury seemed like a cut in the middle of his forehead, between his eyes.

On re-direct examination, Connolly stated that he remembered telling CCRB that when Gomez was stopped, he was yelling, "I don't have to turn off the car, I don't have to stop " He testified that Gomez was far from calm when pulled over, which made him "nervous" about what Gomez was doing. He explained, "I will be honest I was kind of scared at the moment the guy was acting erratic inside the car, he wasn't acting calm at all " Gomez did not comply with the commands given to him, and did not calmly explain that his car was in an accident and that he could not get out. According to Connolly, the cut on Gomez's face "didn't seem too bad "

David Concepcion

Concepcion was interviewed by telephone by Investigator Snodgrass from CCRB on May 5, 2008 (DX 1 and 1A are the compact disc audio recording and the corresponding transcript, respectively, of the interview) Concepcion said he and his wife were getting home and had just finished parking. The pair was taking groceries out of their car when Concepcion heard, "get out of the car, get out of the car " It sounded very demanding to him. Because the car at the center of the ruckus looked like his neighbor's car, he moved closer for a better look. As Concepcion was approaching, he saw the man inside the car, a neighbor he knows as "Gus," open up the front passenger window and say something to the officer on the passenger side. Apparently, someone had hit his car about a week prior so that the front driver side door and window refused to open. The driver was telling the officer on the passenger side that his door and window would not open when the other officer pulled open the driver side door. The officer then proceeded to grab the driver by the neck and throw him down on the ground and then punch him in

the back of the head three or four times. Concepcion said he could not remember Gus' full name because he is bad with names.

According to Concepcion, Gus was not doing anything while being punched. Gus was a "kid," weighing only 120 or 125 pounds. The officer who threw him down weighed about 300 pounds and was a big, tall man who used all his weight to hit Gus. Concepcion said that the officer was cursing at Gus' [girlfriend], telling her to "keep [her] ass back before [he] arrest[ed her] ass too."

Concepcion's wife was a bit further away than he was, but she saw everything. He said Gus was "a good kid," and was never any trouble. They have known each other for seven years, and have gotten friendlier in the last year-and-a-half. Concepcion found the officer's actions unjustified. In his eyes, Gus did nothing to provoke the attack.

The Respondent's CCRB Interview

The Respondent was interviewed by a CCRB investigator on December 22, 2008 (DX 6 and 6A are the tape recording and transcript of the interview, respectively, DX 5 is a two-paragraph document titled "Interview Details" which said the Respondent could not recall Gomez's arrest, even after being shown his arrest paperwork and photo. He did not recall who he worked with that day and had no memo book entries about it.) During the interview he was asked, with regard to the Gomez case, if he had any recollection of the incident with Gomez and he said "None whatsoever." He also did not recognize the arrest photo of Gomez, and also told the investigator that he did not have any memo book entries regarding the case. He did not remember what Gomez was arrested for. When asked if he made any other arrests at the location he replied "Not that I recall."

The Respondent's Case

The Respondent testified in his own behalf

The Respondent

The Respondent has been with the Department for over 14 years. As a police officer, he worked in the 24 and 34 Precincts. After he was promoted to the rank of sergeant, he worked a few months in the 47 Precinct before moving to his current command, the 45 Precinct. In April of 2008, the Respondent was assigned as the Anti-Crime Sergeant in the 45 Precinct. While in this position, the Respondent would typically participate in 25 to 30 arrests per month. He would have hundreds of encounters with the public in the same time frame.

The Respondent testified that he was driving on [REDACTED] on April 19, 2008, when he and his partner observed a vehicle driving erratically. The vehicle was driving fast and not straight. It went into his lane and almost hit him. The officers made a U-turn and pulled Gomez over at the intersection of [REDACTED]. The vehicle stopped in front of the officers in the middle of the road, but did not pull over to the side of the road. It had tinted windows so the Respondent could not tell how many people were inside. The officers approached the car with guns drawn and gave commands to roll down the windows. They heard Gomez yelling, but could not tell what he was saying. The Respondent stated that he was acting very hostile and was not complying with their commands.

According to the Respondent, the area where the incident took place was not a high-crime area and there were people on the street at the time. After giving Gomez the

commands, the door opened and Gomez started cursing and "threatening like he was going to kill me or hurt me or something like that and he runs out of the vehicle to tackle me and that's when I grabbed him threw him down to the ground and went on top of him and as I was attempting to place handcuffs on him he was you know, flailing his arms to prevent me from placing the handcuffs on him "

The Respondent said he did not recall opening the door himself While on the ground, Gomez was resisting the Respondent's handcuffing attempts Gomez was also ignoring the Respondent's commands to stop resisting arrest The Respondent stated that he needed help handcuffing Gomez and Connolly assisted him in placing the handcuffs on Gomez

The Respondent further testified that after Gomez was handcuffed, a woman who introduced herself as Gomez's [girlfriend] approached the Respondent and Connolly She was very upset, and the Respondent told her to step back because she was getting very close to Gomez and that she was interfering with police actions She asked the Respondent why they were arresting Gomez and said that he was just released from a mental facility and had not taken his medication The Respondent acknowledged that Gomez's behavior was consistent with this information that he had not been on his medication

Shortly thereafter, other units responded to the scene, and they took Gomez back to the station house The Respondent stated that because Gomez had suffered an injury, he called a sergeant at the Internal Affairs Bureau (IAB), explained the entire incident and got a log number to document the incident He did not know whether Gomez was treated at the scene or at the precinct He did not remember the injury specifically, but

did remember that it was not very serious. After Gomez initially refused medical treatment, he was eventually seen by paramedics.

When the Respondent reported to CCRB for the interview regarding the incident on April 19, 2008, he sat down in the interview room and was questioned about the time, date, place and brief summary of the location. It was the Respondent's second CCRB case for the day. CCRB told him it was a car stop, gave him a fact sheet and a photo of Gomez, but he did not remember the incident based on the information given to him. He stated that he was not trying to intentionally obstruct the CCRB investigation, but the information did not help him to remember. All he recalled about the interview was CCRB showing him a picture of Gomez. He did not recall whether the fact sheet shown to him contained untrue allegations. The Respondent had been to CCRB before, and did not remember what was on the sheet in this particular case. Nothing on the sheet helped him to remember the incident in any way.

The Respondent acknowledged that he did remember the incident at this trial because he reviewed his paperwork, including his OLBS, the "61" (Complaint Report) and other documents that he had in his precinct locker. The Respondent looked at these documents after he learned he was being accused of misconduct. None of these documents were presented to him at CCRB. The SPRINT sheets⁷ were not shown to him, either. Other than the picture of Gomez, he saw nothing at the "very, very quick" CCRB interview that helped him remember the incident. Between the time of the trial and the date of the underlying incident, the Respondent has made hundreds of arrests and had close to 1,000 encounters with the public.

⁷ Special Police Radio Inquiry Network printout of police radio transmissions

On cross-examination, the Respondent stated that, at one point, he was notified to report to CCRB regarding this matter. He agreed that, "generally," notifications to appear at CCRB include the date of the incident.

The Respondent did not recall whether he brought his memo book to CCRB, but stated that he did not consult any arrest reports corresponding with the date on the notification prior to his CCRB interview. He did not look at the Command Log or any Medical Treatment of Prisoner forms for the date of the incident. He admitted that he took no steps before his CCRB interview which would have helped him to remember what happened.

The Respondent noted that he did consult certain documents after being served charges in this matter. One such document was the OLBS, which contains "a narrative, the charges, the pedigree, the date, [and the] location" of the incident. Since he had a physical copy in his locker, nothing was stopping the Respondent from looking for the OLBS prior to his meeting with CCRB. However, he chose not to consult it. The Respondent then explained that a 61 includes on it the initial complaints, the date, the time, the defendant's pedigree, the complainant's pedigree, and a narrative. To retrieve the 61, the Respondent also got it from his locker after being served with charges in this case. There was also nothing stopping him from retrieving the 61 before his CCRB interview. There were other relevant documents the Respondent looked at after being charged, but he did not recall what those were. He did remember, though, that he had everything together from that incident in a packet in his locker. He did not need to run any computer searches. The Respondent did not make a memo book entry of the case.

The Respondent said he kept “a handful” of cases in his locker. He determines which cases to stow in his locker based on his determination of whether a case will “go further.” Here, the case got an IAB Log number so the Respondent assumed he may have a problem with it down the road. The Respondent clarified what he meant by the term “go further” by saying he needed to be able to explain why he had to do what he did in case his conduct was ever investigated.

The Respondent ultimately made a statement to CCRB on December 22, 2008. He agreed that he was told, at the beginning of his CCRB interview, that an incident occurred at 6:50 p.m. on April 19, 2008, in the vicinity of Sands Place and Schuyler Place. When he walked into the interview room, a fact sheet was provided to him. The fact sheet contained basic information regarding the event. After having read the fact sheet and being told the time and place of occurrence, the Respondent did not recall the incident. He did not remember if the picture of Gomez that CCRB showed him evinced the injuries to his face. The Respondent did remember Gomez having an injury, but did not recall where. The photo of Gomez also did not jog the Respondent’s memory.

CCRB did not provide the Respondent with the arrest paperwork. He stated that if he was given the opportunity to consult his Activity Log, it would not have helped jog his memory because as he previously testified he failed to make an entry in his Activity Log regarding this case. The Respondent did not remember exactly what he told CCRB, but he did remember not recalling anything that happened at the location. He did not recall making a statement to CCRB that he did not make an arrest at that location. He also said he had no recollection of Gomez.

The Respondent was the supervisor on the scene of the incident. He reiterated that Gomez almost crashed into his car. He also restated that he and his partner had their firearms drawn when approaching Gomez's car, but he had his gun pointing down. Although the Respondent could not hear what Gomez was saying while inside his car, he said Gomez was yelling erratically. He did not recall whether he opened the driver's door himself or whether Gomez opened it. The Respondent insisted that Gomez lunged at him, cursing and yelling something of a threatening nature. It was "something mother fucker." At that point, the Respondent took Gomez to the ground and attempted to handcuff him. More specifically, when Gomez lunged out of the car, the Respondent turned to the side, grabbed him from the back of his head and pushed him down to the ground with one arm. Ultimately, he and Connolly handcuffed Gomez. He added that, at some point during that day, he observed that Gomez was injured. The Respondent stated that he was directed by the dispatcher to call IAB and tell them what occurred.

Regarding a Disposition Report for OCD/IRS Complaints/Communication dated August 13, 2008, (DX 7) which indicated that the Respondent conducted an investigation involving IAB Log 08-17129 and which listed the disposition as "Unsubstantiated" and the penalty as "No action taken," the officer under investigation in the report is listed as "unknown" but the Respondent stated that it would have to have been Connolly. While the Respondent stated that he would have had to have known certain facts of the case to conduct such an investigation, he did not remember the investigation. He did not remember if he was given a Disposition Report and a communication to investigate, or merely a Disposition Report to fill out.

IAB Log 08-17129 (DX 7A) is a complaint of "Disputed Arrest/Unnecessary Force" made by Gomez on April 21, 2008, against Connolly and an unidentified officer. The summary in the IAB Log is consistent with Gomez's testimony at this proceeding.

On redirect examination, the Respondent stated that prior to him notifying IAB about the incident, someone else had done so and then he was notified by the dispatcher to call them, which he did. He said when an incident is "not going to be investigated by CCRB and IAB it's just handled right down to command level immediate supervisor" to investigate. At that point, the communication is answered by "either [] fill[ing] out a disposition sheet and an investigation or just a disposition sheet itself."

FINDINGS AND ANALYSIS

In Specification No. 3, the Respondent is charged with failing to make entries in his Activity Log regarding the incident he had with Gomez. The Respondent pled Guilty to this specification and, as such, is found Guilty as charged.

In Specification No. 1, the Respondent is charged with forcibly removing Gomez from a vehicle and throwing him to the ground without police necessity, thereby causing Gomez's head to make contact with the ground. In Specification No. 2, the Respondent is charged with punching Gomez in the head without police necessity.

According to Gomez, he was searching for a parking space when he saw an unmarked police vehicle behind him and pulled over slightly so that the vehicle could pass him. When the police vehicle stopped behind him, he saw two plainclothes officers approach his car, one on each side, with their guns drawn. As they approached his

vehicle, he lowered the rear and front passenger windows, but could not open the driver side door or window because his car was damaged from an accident. As Connolly approached the passenger side, he told Connolly that his driver door could not open. While he was talking to Connolly, the Respondent began banging on his driver side window with his gun and trying to open his door. Gomez claimed that his hands were on the dashboard while he was explaining to the officers that he was not trying to do anything suspicious by reaching into the back of the vehicle to open the rear driver side door, which, when opened, would unjam his driver side door.

When he finally got the driver side door opened, Gomez stated, he told the officers that he was getting out with his hands up. He then carefully stepped out of the vehicle and, as he did so, he claimed that he was grabbed by the Respondent, thrown to the ground and was repeatedly punched in the back and side of his head. He stated that he did not take any action while on the ground and he had his hands behind his back at all times, further claiming that he did not resist arrest in any way or make any movements with his hands or legs while being punched. As a result of this incident, he received an abrasion to his forehead and was treated at [REDACTED] Hospital. His hospital records indicate that he told hospital personnel that he was assaulted by undercover police officers, punched 15 times and suffered from headache, dizziness and body pain. He was prescribed Tylenol for pain.

Gomez further pointed out that he was previously hospitalized on two occasions for what he claimed were bouts of sleeplessness and its effects on him. [REDACTED]
[REDACTED], where he claimed he just watched television and

slept. He insisted that he was never given any “crazy ill medications” and was merely prescribed Advil PMs or something a bit stronger.

This Court, upon further examination of Gomez’s version, however, finds that his credibility, at the very least, is somewhat doubtful.

Both the Respondent and Connolly told this Court they observed Gomez driving fast and erratically, changing lanes and almost hitting their vehicle. Their concern for his dangerous driving caused them to make a U-turn to stop his vehicle. This Court does not believe they would have made such a maneuver if Gomez was just driving carefully looking for a parking spot. It was his dangerous driving that caught their attention and caused them to respond.

When they pulled their vehicle behind Gomez’s and put on their emergency lights, they observed that Gomez did not pull to the side of the road, he just remained in the middle of the street. Their concern was that the driver might drive away. They then approached his vehicle with guns drawn because the vehicle had tinted windows and they could not see who was inside. They were also concerned that Gomez was not responding to their commands to turn off the ignition. Connolly remembered Gomez saying something but he could not remember what it was and he did not recall any conversation about damage to the car preventing the driver’s door from opening.

At one point, Gomez exited his vehicle. This Court does not find it credible that he exited his vehicle with his hands behind his back and was viciously attacked. He was heard cursing in the car prior to his exit and Connolly stated both in his CCRB statements and trial testimony that Gomez quickly opened the car door and lunged out of the car towards the Respondent. The Respondent believed that he was attempting to tackle him.

and admitted that he then grabbed Gomez and threw him to the ground and got on top of him to handcuff him. When Connolly saw Gomez lunge out of the car, he went around the car while calling for assistance over the radio. When he reached the Respondent, he observed that Gomez was "jerk[ing] around left and right" to avoid being handcuffed. While he saw the Respondent trying to handcuff Gomez, he did not see him punching and kicking him.

McCormack was critical of the fact that Connolly could not see if the Respondent was punching Gomez because he momentarily took his eyes off of them to focus on the radio. This Court finds, however, that if the Respondent was punching Gomez 15 times as Gomez told hospital personnel, then Connolly would have to have seen some of those punches when he resumed focus on them as he approached the driver side of the car.

While this Court does believe that Gomez suffered an abrasion to his head and possible soreness to his body during his aggressive behavior with the Respondent, it does not believe that he was savagely beaten by the Respondent in the manner he described. Had he been punched and kicked as he alleges, it is very likely that he would have suffered much more than an abrasion and his treatment would have been more extensive than Tylenol.

This Court does not know why Gomez reacted the way he did with the officers. It may very well stem from the fact, as his girlfriend told Connolly, that he suffers from psychological problems and was just released from [REDACTED] Hospital where he received [REDACTED] treatment. She told Connolly that she does not know why he acts the way he does and that he is on medications. This description by his girlfriend casts further doubt on Gomez's credibility where he states that he was admitted into a hospital for just

lack of sleep and was allowed to stay there for 20 days where he just watched television and slept. He claimed that he was not given any "crazy ill medications" and was just given Advil PM. It is doubtful that any hospital would give up that much valuable time and space to allow someone to sleep and watch television.

Concepcion, as McCormick testified, was interviewed by a CCRB investigator over the telephone. While his hearsay statements mirror that part of Gomez's version where he alleges the assault, specifically where Concepcion stated that he was grabbed by the officer, thrown to the ground and punched in the back of the head three or four times, this Court has serious concerns as to his identity and credibility. His identity was never confirmed by CCRB because he never reported to their office nor did an investigator go to his home. He also did not appear to testify at this trial. CCRB's only contact with him was by telephone, leaving this Court to wonder if he is who he claims to be and if his story would stand up to a minimal amount of questioning by way of cross-examination. Without more, this Court has no way of knowing if he is a friend of Gomez and got together with him to fabricate a story from a safe distance, while remaining somewhat anonymous, that supports Gomez's version. Therefore, based on this finding, this Court cannot give any meaningful weight to his hearsay statements.

Based on the foregoing this Court finds the Respondent Not Guilty of Specification Nos. 1 and 2.

In Specification No. 4, the Respondent is further charged that while being interviewed by investigators from CCRB regarding the incident with Gomez, he could

not cooperate with investigators in that during the interview, he was unable to report any pertinent information, facts and observations regarding the incident

The Respondent reported to CCRB to give information about the incident with Gomez. The Respondent, as an experienced officer, knows that he must cooperate with CCRB investigators. That cooperation includes reviewing any and all paperwork from the case that will help him remember the case and provide facts to the investigator.

The Respondent claimed that he did not remember anything about the case, the date, location, Gomez or the incident. Yet, when he received charges and knew he was going to testify at trial, he simply looked in his locker and retrieved the file that he kept regarding this case. The file, as he admitted, was there from the time the incident occurred. He simply had to review that file either before he reported to CCRB, or upon his return, to refresh his memory. He then should have contacted CCRB and returned for another interview. He chose not to cooperate with their investigators and report the facts of this case to them as required.

Accordingly, the Respondent is found Guilty of Specification No. 4.

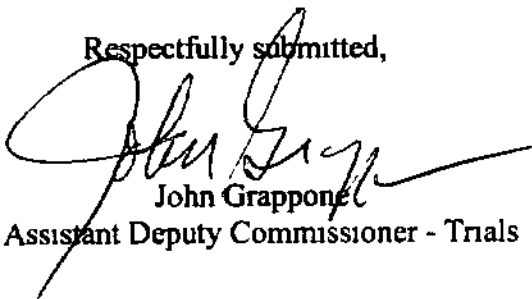
PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). The Respondent was appointed to the Department on July 18, 1996. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

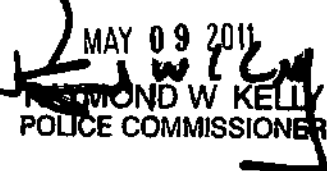
The Respondent pled Guilty to not making entries in his Activity Log with regard to his encounter with Gomez and not cooperating with CCRB's investigation into this matter. This Court finds the Respondent's lack of cooperation with CCRB a serious breach in the confidence that the Department places in its members to be cooperative with that investigative organization. CCRB provides the public with a forum to address their complaints of possible mistreatments by members of the Department. It is the duty of every member to cooperate with each and every request made by their investigators.

Accordingly, it is recommended that the Respondent forfeit a penalty of 20 vacation days.

Respectfully submitted,



John Grappone
Assistant Deputy Commissioner - Trials

APPROVED
MAY 09 2011

RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From Assistant Deputy Commissioner – Trials
To Police Commissioner
Subject CONFIDENTIAL MEMORANDUM
SERGEANT GEORGE MORALES
TAX REGISTRY NO 918029
DISCIPLINARY CASE NO 85735/09

The Respondent received ratings of 4.0 "Highly Competent," 4.0 "Highly Competent" and 4.5 "Highly Competent" on his performance evaluations for 2008, 2009 and 2010, respectively

The Respondent's disciplinary record indicates that on October 25, 1999, he pled Guilty to wrongfully causing a person annoyance and alarm and forfeited a penalty of 10 vacation days

The Respondent was on Level II Force Monitoring from September 12, 2003, to September 29, 2004. He was placed on Level I Force Monitoring on August 11, 2008, which is still active

For your consideration


John Grappone
Assistant Deputy Commissioner-Trials